Polls Open At 6 a.m.

Charter Changes On Tuesday's Ballot

By Tracy Allen

Kansas City voters will have only one item to focus on when they go to the polls on Tuesday, Nov. 6, and that is – whether or not to continue to utilize the City Charter that has been in operation for the midwestern city for over seven decades.

Of course, if attorney Herb Kohn, the chairman of the Charter Review Commission, could have his way, that ancient document, adopted February 24, 1925, would be history.

However, Kohn knows that it will take the voters next Tuesday to determine whether Kohn's wish is granted. **Polls will open for voters at 6 a.m., and will close at 7 p.m.**

Kohn among others on the Charter Review Commission would like to see the charter trimmed down to fit today's area government. Also, Kohn believes that the recommendations by the committee will free up the City Council and provide more flexibility for those governing the city.

"It's a document that we think will continue to serve the city well for another 75 years," said Kohn. "It's flexible and changes can be made to it."

"There's nothing wrong with the current charter but it is one that is 75-years-old and it has gotten out of hand. There are elements we don't need any more and it has become too cumbersome," Kohn said.

City Councilwoman Mary Williams Neal, 3rd District, and City Councilman Troy Nash, 3rd District At-Large, both favor the proposed charter.

"It will give us a lot of flexibility," said Councilwoman Neal. "This (charter) will be good the city. This will benefit most people."

Councilman Nash said, "I think it would be less restrictive. Many of the archaic and old rules the current charter has no longer applies to us in the 21st century. Anytime you can narrow down government and make it simple for people, it will benefit everyone."

Elements that Kohn believes the 380-plus page charter no longer needs includes eliminating close to 50 pages of language concerning property condemnation that is in conflict with state statutes. Other changes include getting rid of requirements for contracts, internal structure of departments, bond sales, grading, public improvements, levee districts, trafficways commission, plants and vacations, assessment and taxation of property, and franchises and property assessments. The proposed charter would allow the Kansas City Council to draft laws that would regulate those arenas.

What the proposed charter would add is changes concerning elections and residency requirements for those running for office.

The current 76-year-old charter requires that anyone who runs for Mayor must live in the Kansas City area for at least five years. As for those considering the City Council spots, an individual must live in

Continued on page 4

Kansas City for at least five years plus the added stipulation of six months in the district they are campaigning for prior to the election.

Under the proposed charter, the residency requirement for Mayor will stay at five years to a lifetime but, those running for Mayor must live in Kansas City for two years prior to the election. Also, City Council member candidates must also live in the Kansas City area for two years preceding the election and must also reside in their respective district for at least six months before the election.

With the proposed charter, individuals such as former U.S. Representative Alan Wheat, who recently moved back to Kansas City from Washington D.C., would not be eligible to run for the upcoming 2003 election since he would not have lived in Kansas City prior to the 2002 deadline for applicants.

Another change would be the election date. Under the proposed charter, the election season would start a few weeks later.

Other changes include switching the general municipal election to the first Tuesday after the first Monday in April with a primary election four weeks earlier, beginning with the 2003 election.

As for the initiative process, the process will get harder. Under the proposed charter, the Law department would review the initiative. After approval, those petitioning would have up to 180 days to get signatures which must come from four of six districts, said Kohn.

Also at issue will be recall petitions, which individuals must give a specific reason for having them before they will be approved.

For instance, with the new charter, instead of citizens getting all signatures first and taking them to City Hall; Kohn said citizens would be asked to first go to City Hall first, get the proper approval prior to gathering signatures. Kohn said it would alleviate unnecessary work by the petitioner's and eliminate unreasonable petitions.

Tom Bogdon, editor of ***The Labor Beacon***, and who has an editorial published in this week's edition of the newspaper, stated, "Changes to the charter are "misguided." Bogdon said the changes would only make a bad situation worse.

"The virtual elimination of the initiative petition process obviously is intended to squelch the last vestiges of civic activism here, and it would be convenient for the current City Hall establishment to ban a formidable potential mayoral candidate such as Wheat from the 2003 race," Bogdon said.

For 75 years, Kansas Citians have managed to tolerate the current city charter, with amendments in between. Kohn says its time for a change. But, Kansas Citians will have to decide that at the polls Tuesday.

"I'm concerned about low turnout," Kohn said. "Anytime you have people against something, there always seems to be a high turnout of those against it. That's my concern. I know many are in favor of the new charter. Now, they just need to go

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